

IN THE COURT OF [DESIGNATION OF THE PRESIDING OFFICER],
[PLACE]

[Case type] No. [] of [Year] | CNR No. []

Party	Name and particulars
Petitioner / Plaintiff / Complainant	State / [Name of Complainant] [age], [son/daughter/wife of], [complete address with PIN]
Respondent / Defendant / Accused	[Name of Accused] [age], [son/daughter/wife of], [complete address with PIN]

Date fixed: [DD.MM.YYYY] Stage: []

APPLICATION UNDER SECTION 355 OF THE BHARATIYA
NAGARIK SURAKSHA SANHITA, 2023 (CORRESPONDING TO
SECTION 317 OF THE CODE OF CRIMINAL PROCEDURE, 1973)
FOR EXEMPTION OF THE PERSONAL APPEARANCE OF THE
ACCUSED [NAME] FOR [DATE]

Note: where the proceedings were pending before 1 July 2024, cite Section 317 CrPC (see Section 531 BNSS). For a Magistrate dispensing with personal attendance in a summons case, Section 228 BNSS (Section 205 CrPC) may also be cited.

Respectfully showeth:

- That the above case is pending before this Court and is fixed for [stage] today / on [date].
- That the applicant/accused is unable to appear in person on the said date because [state the reason briefly and truthfully, e.g. illness / unavoidable official duty / travel], as shown by [document, if any, annexed as Annexure A-1].
- That the absence of the applicant is neither intentional nor deliberate. The applicant is represented by counsel, who will appear on his/her behalf, and the applicant undertakes not to dispute his/her identity and to appear in person whenever directed by this Court.
- That no prejudice will be caused to the prosecution / complainant if the application is allowed, and the proceedings may go on in the presence of counsel.

PRAYER

It is, therefore, respectfully prayed that the personal appearance of the applicant/accused [Name] may kindly be exempted for [date], and he/she may be permitted to be represented through counsel.

And any other order which this Court deems fit in the interest of justice may also be passed.

Place: [_____]

Date: [DD.MM.YYYY]

Applicant / Accused

Through Counsel

[Name of Advocate], Advocate

Enrolment No. [_____]

[Chamber / office address]

[Email] | [Mobile]